



POLICE DEPARTMENT

December 22, 2023

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th Floor
New York, NY 10007

POLICE COMMISSIONER'S PENALTY DEPARTURE

Re: CCRB Case No. 202204404 (Incident Date: July 1, 2022) regarding Police Officer Marc Pierre, Tax No. 970773 (DADS No. 2023-29489)

Dear Mr. Darche:

The Police Commissioner has reviewed the request for a Schedule "A" Command Discipline in connection with CCRB Case No. 202204404, pertaining to Police Officer Marc Pierre. Having analyzed the facts and circumstances of this matter, the Police Commissioner has determined issuing discipline against Police Officer Pierre would not be in the interests of justice.

The Police Commissioner intends to issue no disciplinary action for the allegation that Police Officer Pierre failed to provide a business card to the complainant. Pursuant to Administrative Guide Procedure 304-11 (Compliance with New York City Right to Know Act), states, in relevant part, that uniformed members of the service are to "Offer pre-printed RIGHT TO KNOW BUSINESS CARD upon conclusion of law enforcement activities, except in cases when a summons is issued or an arrest is made, or exigent circumstances are present (i.e., physical resistance, flight, imminent danger of physical injury or damage to property, or other facts make such procedure impractical)." Here, Police Officer Pierre issued the complainant a Criminal Court summons for trespass. The Police Commissioner has determined Police Officer Pierre complied with Administrative Guide Procedure 304-11, as officers are not required to offer a right to know business card when a summons is issued.

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Website: <http://nyc.gov/nypd>

Sincerely,

A handwritten signature in black ink, appearing to read 'DC' followed by a stylized flourish that extends to the right.

Anthony S. Marino
Deputy Chief
Commanding Officer
Police Commissioner's Office